

made by the concern or subsidiary under paragraph (c) of the said subsection (3), it was taken to be for the purposes of paragraph (a) of that subsection.

2.—(1) This Act may be cited as the Coal Industry (No. 2) Short title, Act, 1949, and shall be included amongst the enactments which citation and may be cited together as the Coal Industry Acts, 1946 and 1949. extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 80

An Act to repeal section five of the Post Office and Telegraph Act, 1940, in so far as it applies to contracts made by local telegraph authorities.

[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of section five of the Post Office and Telegraph Act, 1940 which provide for increases in charges under contracts made by local telegraph authorities, that is to say—

(a) paragraph (b) of subsection (1) of that section,

(b) subsection (6) thereof,

(c) in subsection (10) thereof the words “or the local telegraph authority” in the definition of “exchange service contract”, the definition of “local telegraph authority”, and the words from “or by virtue” to “local telegraph authority” and the words “or by that authority” in the definition of “telegraph contract”,

Repeal of provisions of s. 5 of Act of 1940 relating to local telegraph authorities.
3 & 4 Geo. 6.
c. 25.

shall not have effect in relation to any contract made by a local telegraph authority after the passing of this Act, and in relation to any contract made by such an authority before the passing of this Act shall cease to have effect on the earliest date after the passing of this Act as from which, in the exercise of the powers conferred by the contract, the local telegraph authority alter the amount of the subscription payable under the contract:

Provided that nothing in this section shall affect the operation of the said provisions in relation to any charge under such a contract made before the passing of this Act, being a charge which under the terms of the contract is payable before that date.

(2) This Act may be cited as the Telegraph Act, 1949.

(3) This Act shall be construed as one with the Telegraph Acts, 1863 to 1943, and may be cited together with those Acts as the Telegraph Acts, 1863 to 1949.

CHAPTER 81

An Act to amend the British North America Act, 1867, as respects the amendment of the Constitution of Canada.
[16th December 1949.]

WHEREAS the Senate and the House of Commons of Canada in Parliament assembled have submitted an Address to His Majesty praying that His Majesty may graciously be pleased to cause a measure to be laid before the Parliament of the United Kingdom for the enactment of the provisions hereinafter set forth :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
as to
legislative
authority of
Parliament of
Canada.
30 & 31 Vict.
c. 3.

1. Section ninety-one of the British North America Act, 1867 is hereby amended by renumbering Class 1 thereof as Class 1A and by inserting therein immediately before that Class the following as Class 1:—

“ 1. The amendment from time to time of the Constitution of Canada, except as regards matters coming within the classes of subjects by this Act assigned exclusively to the Legislatures of the provinces, or as regards rights or privileges by this or any other Constitutional Act granted or secured to the Legislature or the Government of a province, or to any class of persons with respect to schools or as regards the use of the English or the French language or as regards the requirements that there shall be a session of the Parliament of Canada at least once each year, and that no House of Commons shall continue for more than five years from the day of the return of the Writs for choosing the House; provided, however, that a House of Commons may in time of real or apprehended war, invasion or insurrection be continued by the Parliament of Canada if such continuation is not opposed by the votes of more than one-third of the members of such House.”

Short title
and citation.

2. This Act may be cited as the British North America (No. 2) Act, 1949 and shall be included among the Acts which may be cited as the British North America Acts, 1867 to 1949.